

Council Meeting
August 14, 2019
Page 1

The Claremont City Council held a meeting on Wednesday, August 14, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Kristin Kenniston
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Abigail Kier

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

AGENDA CHANGES

Mr. MacLean asked to add an item to the agenda to authorize a multi-year lease agreement for vehicles and equipment. The Council is not scheduled to meet again this month and the City would like to get this done now because of the favorable lease rate. Councilors agreed, again, there would not be a Council meeting on August 28. This item will be placed under New Business, 10G. Authorize Multi-Year Lease Agreement for City Vehicles and Equipment.

A motion was made by Mr. Koloski and seconded by Mr. Damren to suspend Council Rules.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kenniston - yes

Koloski - yes

Pope - yes

Lovett - yes
Motion carried 6-2.

REPORT OF THE SECRETARY

A motion was made by Mr. Damren and seconded by Mr. Stone to accept the minutes of the July 10, 2019, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Mr. Damren and seconded by Ms. Kenniston to accept the minutes of the July 20, 2019, City Council meeting as amended.

Mr. O'Hearne asked that his and Mr. Koloski's names be properly spelled.

Voice vote: motion carried 8-0.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to accept the minutes of the July 24, 2019, City Council meeting.

Voice vote: motion carried 8-0.

MAYOR'S NOTES

- Thanked the American Legion for its 100 Anniversary Celebration on July 28.
- Thanked Congresswoman Kuster and staff for the Federal Funding Workshop that was held at the Claremont MakerSpace. Many of the panel members praised Planning and Development Director Nancy Merrill for her work over the years to secure money for projects.
- August 16-October construction will take place to make the Amtrak train station ADA compliant.
- Yesterday, she testified at the House Senate Joint Finance Ad Hoc Committee regarding the impact of the continuing resolution to the municipality. There will be another hearing on August 29 regarding the education funding issue. She has spoken to the School Board Chair and School Superintendent about that.

CITY MANAGER'S REPORT

- Thanked the Council for extending his contract and he looks forward to the new City Manager coming aboard.
- Claremont Housing Authority only has three members on a five-member board. He asked the public to apply for the open boards & commissions seats.

Mr. MacLean introduced Robert Vachon, Vachon, Clukay & Company PC, to discuss forensic audits.

Ms. Walter said the City segregates its financial duties for risk management and internal controls. No less than three people are involved in all aspects of the payment process. The Finance staff is encouraged to ask questions, if needed. The City has an audit every year and, in most years, also has a more rigorous federal single audit. She has been the Finance Director for 18 years and in that time, the City has been audited by three different audit firms. The City has had clean audits for the past 12 years and most of the 6 years before that. There has never been any suggestion of fraud or criminal intent. The request by Councilor Stone to have a forensic audit implies there has been some type of criminal activity in the financial area of the City. In order to restore the reputations of the staff and the public trust, she requested the Council go forward with a forensic audit.

A motion was made by Mr. O'Hearne and seconded by Mr. Pope to move 10F. Discussion of Councilor Stone's Request for Forensic Audit to now.

Roll call vote:

Lessard - no

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 7-1.

Discussion of Councilor Stone's Request for Forensic Audit

Mr. Vachon showed a PowerPoint presentation to explain what a forensic audit is. A Forensic Audit is an examination and evaluation of the City's financial records to derive evidence that can be used in a court of law or legal proceedings. The primary difference between financial audit and forensic lies in the purpose of the audit. Forensic audits relate directly to an issue such as employee fraud or embezzlement, or vendor fraud. A forensic audit is extremely expensive as each transaction has to be looked at. The City processes thousands of transactions each year. If the Council wanted to define the scope of the audit, it could be done. In past audits, no significant deficiencies have been found. The prior auditor also found no significant deficiencies.

Mr. O'Hearne asked Mr. Vachon who asked him to come here. Mr. Vachon said Ms. Walter and Mr. MacLean. Mr. O'Hearne asked if the City were being billed for his coming here. Mr. Vachon said no.

Mr. Stone said his recommendation for a forensic audit was based on the high level of professionalism that is done, in addition to being the high bar for evidence factor of a forensic audit. If there is an audit between a forensic audit and what is currently done, he would be

entertain that. Mr. Vachon said the City has to tell them what it wants them to look at and what compliance procedures it is most interested in. Currently, 40 transactions are selected for review for every revenue/expense cycle. It is done at random.

Mr. Stone said his biggest concern is about the big financial surprises that have come from the school lately and that they should have been caught earlier. He wants more transactions looked at so the City doesn't have the same things happen.

Mr. Koloski said two different auditing firms have identified no red flags. Without specifics of what someone thinks is incorrect, he is not comfortable spending the money.

Mr. MacLean said regarding the School Board, he doesn't believe it's an audit issue; he believes there was a failure to file with the IRS in a timely fashion.

Mr. MacLean asked Mr. Vachon, should the Council decide to go forward at this point, what would he recommend that would help restore this question for us and help satisfy the concern that this would be the right time to do something a little bit different; what could we do at this point. Mr. Vachon said a forensic audit of the Finance Department would be prohibitively expensive, but anything the Finance Director or former City Manager touched, they could look at.

Mr. Damren said he understands what a forensic audit is and apologized to Ms. Walter for not speaking up when Mr. Stone made his request.

Ms. Kenniston said when her firefighter husband was injured in 2014, he was out of work for 10 weeks on worker's compensation. She said the worker's compensation process was not following the protocols it was supposed to follow. He had to sign over the Primex check to the City and in the end, her husband paid \$300 more than he should. She said a year later she had to request the \$300 back. He was charged taxes on the income and contributed to retirement which he shouldn't have done. She doesn't think anyone was intentionally doing something fraudulent, but she thinks mistakes were being made and so her thought when he brought up the audit was that other things could be looked at to make sure the City is in compliance. She doesn't want to spend \$100,000 on an audit.

Mr. Stone said he was not insinuating anything on a particular department or individual. With a new City Manager coming in, he wanted the City's books to be looked at to make sure the City doesn't have any surprises.

There was more discussion about the issue at the school and Mayor Lovett said she was not comfortable discussing this without the school being present. She suggested it be an agenda item at the quarterly meeting in September between the Council and School Board.

Mr. Koloski said it was a comment made by one Councilor. He doesn't feel the need to have a discussion about this with the School Board. If anyone has a concern about it, they should go to speak at a School Board meeting.

A motion was made by Mr. Damren and seconded by Ms. Lessard to not appropriate any money to move ahead with a contract for what is termed to be a forensic audit per previous discussion.

Mr. O'Hearne didn't think it was necessary to have this motion.

Mr. Stone said procedurally he concurred with Mr. O'Hearne. He doesn't think we are at a point to do a forensic audit, he thought this was a discussion. His recommendation for the agenda was to have a discussion, not to order an actual forensic audit.

Mr. Damren said he is comfortable with the yearly audit that is done for the City of Claremont books and the way they are kept by the Finance Department and he won't vote for anything beyond that.

Mr. Pope asked how much the yearly audit costs. Ms. Walter said it is around \$32,000. The prior auditors charged over \$40,000.

Mr. MacLean asked Mr. Vachon if the Council were to consider anything at this time, he thinks he heard Mr. Vachon say he would look at transactions that involve the Finance Director. Mr. Vachon said they could do that. He doesn't know cost because he doesn't know the number of transactions. It would be based on an hourly rate. He believes the Councilor is looking for wider issues.

Mr. Koloski said he will vote no because he doesn't believe there needs to be money spent on this.

A motion was made by Mr. O'Hearne and seconded by Mr. Pope to table the discussion.

Roll call vote:

Lessard - no

O'Hearne - yes

Stone - yes

Damren - no

Kenniston - yes

Koloski - no

Pope - yes

Lovett - no

Motion failed 4-4.

Mr. Damren said he wants this discussion tonight to be done and a vote of confidence put in our City Finance office.

Mr. Koloski said he hasn't heard anyone say there was a non-vote of confidence. He said Mr. Stone explained what his intent was, so he doesn't think an official vote of confidence by this

body is needed. If something comes forward at a later time, he suggested it be discussed in a Non-Public Session so as not to tarnish someone's reputation.

Mr. Damren withdrew his motion and Ms. Lessard withdrew her second to the motion.

Mayor Lovett said she will check with the School Board Chair and Superintendent to see if they want to discuss this at the next joint meeting. Mr. MacLean said he didn't hear a request by the Council to do that. Mayor Lovett said because of tonight's discussion, the School Board Chair or Superintendent may be asking to have that on the agenda.

Mr. O'Hearne doesn't think Council needs to discuss this at the joint meeting.

Mr. Pope thinks this is starting to cross boundaries between the two entities.

Mr. Koloski wants to make sure the message being delivered to the School Board is that the Council is not requesting that item be on the agenda. He doesn't believe in furthering this issue, but if he would like to discuss this further, he will stand up at the School Board meeting as a member of the public. Mayor Lovett understands the concerns and will copy the Council on her email to the School.

Mr. Damren asked Ms. Walter what action she would like the Council to take. Ms. Walter said she stated that in her opening statement. Mr. O'Hearne said Council doesn't need to ask the administration how it wants Council to proceed. Council should decide what direction to go. Mr. Damren said the phrase that was put out in public has a negative meaning and it is courteous to ask the person how they want it handled. Mr. Stone said there was no specific individual, so that point is moot. He asked to move on from this question.

Mr. Koloski agreed with Mr. Stone.

APPOINTMENT TO BOARDS AND COMMITTEES

Frances J. Tolles Home Trustees

A motion was made by Mr. O'Hearne and seconded by Mr. Pope to re-appoint Vicki Landry to seat 5 of the Frances J. Tolles Home Trustees.

Voice vote: motion carried 8-0.

CITIZEN'S FORUM

Patrick Adrian, Ward 1 resident and Eagle Times reporter, asked when Mr. Stone asked to place the forensic audit discussion on the agenda if he said why. He asked if anyone on the Council, particularly those who know what a forensic audit is, asked why, and if not, why not. Mr. Koloski noted that Councilors don't usually have conversations around Future Agenda Items.

Mr. Damren said he knows the term and has already stated his embarrassment for not questioning it. Mayor Lovett recommended Mr. Adrian review the Council meeting recording.

Lloyd Smrkovski, Ward 3, said he is a forensic scientist and he analyzes evidence. He wears the forensic title with honor. Forensic scientists can draw evidence for clearing people as well as convicting them. He has every confidence in our Finance Director and our Interim City Manager. He said over a year ago he had submitted a request for financial information because of a rumor of possible wrongdoing, but had not received a response. He'll submit the request again. He said he has been a victim of crime in Claremont: break-in burglaries. He said unity and trust come about by receiving a timely response. Mr. MacLean asked Mr. Smrkovski to give him the information he had requested at the Council meeting break.

Janet Raymond, Ward 2, said she wanted to discuss her water bill. She said she spoke to the previous City Manager. She is on a flat rate; she is the only one in the house; and the water bill is \$400 for 6 months. Public Works recommended she have a meter installed, which is costly. She said she doesn't expect to be in Claremont long. She's on disability. She just wanted to vent about this. Mr. MacLean said he would be happy to talk with her at the break. Ms. Raymond said that Mayor Lovett is doing a good job.

OLD BUSINESS

City Manager Search Update

Mr. Damren said the Council has made a conditional offer to Ed Morris, Town Administrator in Weathersfield, Vermont. Mr. Morris is on vacation and will return on August 24th. The contract is pretty well defined. He anticipates the contract will be signed on August 25th. After it is signed, Mr. Morris will give notice to Weathersfield and he is expected to be in Claremont by the end of September. Mr. MacLean's contract has been extended through the end of the October, so there will be overlap, if needed. The criminal background check is expected to be ready in the next week or two. Mr. Damren is looking forward to Mr. Morris joining Claremont.

Ordinance 568 Amending the Non-Union Employee Pay Schedule – Second Reading

The purpose of this proposed change is to amend Attachment C to the Non-Union Employee Classification Plan by amending and readopting the salary schedule for non-union City employees.

Enactment of this Ordinance will amend Attachment C of the Non-Union Employee Classification Plan. This change was requested by the City Administration and recommended by the Personnel Advisory Board.

Mr. MacLean said this is the second of three readings. The third reading will be the public hearing and the vote by Council whether or not to adopt the ordinance.

Mr. Pope read the Explanation of Proposed Action.

A motion was made by Mr. Damren and seconded by Ms. Lessard to suspend Council Rules in order to not have to read the entire ordinance and to move Ordinance 568 to third reading.

Mr. O'Hearne disagreed with suspending Council Rules. He thinks the ordinance should be read. Mayor Lovett asked him if he wanted to read the ordinance. He said no because he doesn't agree with it.

Mr. Damren withdrew his motion and Ms. Lessard withdrew her second.

Mr. Pope read the ordinance into the record.

A motion was made by Mr. Pope and seconded by Mr. Damren to adopt Ordinance 568 Amending the Non-Union Employee Pay Schedule on Second Reading.

There was a discussion about maxed out employees. Mr. MacLean said the second part of the request to the Council will be to do an analysis of positions.

Ms. Walter said the compensation plan is in the City Code. Outside agencies have come in to score the positions. The City has been told the current plan is obsolete. It was last done in 2014.

Mr. MacLean said the whole process will start with evaluating the job descriptions; each position is given a grade; and it is checked against the marketplace.

Mr. MacLean said the intent is to make a 2% salary adjustment for Merit Plan employees, which is already in the budget. Those who are eligible, would get this. We have employees who are very loyal to Claremont. Claremont has been an incubator for people who have gone elsewhere. We have people we want to retain and we are looking for fairness. To hire replacements, you would have to compete with the market. This is a small adjustment to help keep people in place and then to work on the plan itself, recognizing that it will have some significant issues that will have to be considered over a phasing-in process.

Mr. O'Hearne talked about employees that have stayed with the City that you don't want to lose. He talked about the amount of work the Gwen Melcher, City Clerk does.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to amend the previous motion and that the City Clerk be moved from a grade 9 to grade 11.

Mayor Lovett said if this is changed, the ordinance will go back to first reading.

Mr. MacLean talked about fairness and that he would like to talk about it during the second step.

There was a discussion about the Personnel Advisory Board (PAB) minutes that were included in the packet and Mr. O'Hearne's request to have a PAB member at the Council meeting, however none of the members were available.

Ms. Walter said positions are given grades based on knowledge, skills and abilities. In order to change the City Clerk's grade, the City would have to bring someone in to re-score the position based on knowledge, skills & abilities. She noted that Ms. Melcher is not at the top of her pay scale.

Mr. Damren suggested it was time to move the question to amend the motion.

Roll call vote to amend the motion:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - no

Kenniston - yes

Koloski - no

Pope - no

Lovett - no

Motion failed 4-4.

Voice vote to move the ordinance to third reading: motion carried 8-0.

NEW BUSINESS

City-owned Properties Discussion

Nancy Merrill, Planning and Development Director, said the entire list of City-owned properties has about 169 parcels on it (including cemeteries, etc.); 3 properties are the Senior Center, Historic Society, and Housing Authority; 16 are Owner Unknown; 86 are in use by the City or the School District; and 64 are not currently in use. Of those 64, eight parcels are rural, around Cat Hole area. The Conservation Commission asked the City to hold onto those to use for future conservation easements for mitigation. There are some parcels on the list that are not developable. Six parcels have questions that need to be resolved. Sugar River parcels – unknown what the City wants to do with those parcels on the north side of the Sugar River. Beauregard Village parcels there are some flooding issues. No one can find the original HUD grant agreement to see if there were any conditions for future use of the property, and the deeds don't have deed restrictions. HUD doesn't have a copy of the agreement. Buildings – 111-119 Main Street, last year it was suggested both be demolished, but based on feedback, 111 should probably be scheduled for demolition, and if you could find a buyer, 119 could be fixed up. JSL (Junior Sports League) building, the City should keep trying to sell it. Lot Mergers are recommended for five parcels: 107-292 North St., with Barnes Park, buses park there when games are at Barnes Park. Two lots on Belding Street – unknown if these are used for parking or not. 118-133 and 118-134 Albion Street are tiny lots and should be merged to form a bigger lot

for sale. 120-125 Bailey Avenue lot is on a hill, keep as open space or merge with Monadnock Park. 97-17 Veterans Park Road, lot of snowmobile trails, merge with Veterans Park.

Mr. Koloski would like to see something done with the parcels on the river. The smokestack is deteriorating and people are getting into the building, which is a concern. He suggested it would be a beautiful area for townhomes.

This will be placed on a future agenda in order to get information on how to proceed with these parcels.

A motion was made by Mr. Stone and seconded by Mr. O’Hearne to do the lot mergers as presented: 107-292 North Street with Barnes Park; 118-133 and 118-134 Albion Avenue merge to form a bigger lot for sale; 120-125 Bailey Avenue merge with Monadnock Park; 97-17 Veterans Park Road merge with Veterans Park.

Voice vote: motion carried 8-0.

Ms. Merrill asked that if anyone from the public has information regarding Beauregard Village, she would like to talk with them.

Ms. Merrill said the City will do some deed research on the parcels with unknown owners. Mr. Koloski asked if the Winter Street parcel 96-27 could be sold for housing development. Ms. Merrill said it’s a hard parcel to develop because it is hilly, has a lot of granite and a lot of vernal pool. It has some access problems, however, it’s a matter of money.

Resolution 2019-26 Overspend Welfare Budget – Public Hearing

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that it hereby grants permission to overspend the Welfare Department 2019 Budget, as approved, by up to \$20,000.00 to cover client costs, as required by New Hampshire RSA 165:1 et seq.

Such department over-expenditures shall not exceed the total bottom line appropriated for 2019. (2/3 Vote Required)

Suzanne Carr, Welfare Director, said her department at the mercy of inspection schedules and landlord compliance. The department was holding almost \$10,000 and recently was able to release funds.

Ms. Walter said the bills have been closed out, so this draft resolution can be amended to read \$10,000, instead of \$20,000.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to adopt Resolution 2019-26 Overspend Welfare Budget.

Mr. O’Hearne read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 8-0.

Accept Non-Cash Donation of Security Cameras and Monitoring Equipment for the
Parking Garage from Red River – Public Hearing

Police Chief Mark Chase said the majority of the Parking Garage is used by Red River. Currently, there are cameras in the front of the garage. It has been noticed that where there are no cameras, there have been problems. Because Red River employees are parking in there, Red River will pay to install the cameras in the garage. This is added security and he supports this.

A motion was made by Mr. Stone and seconded by Ms. Kenniston to accept with sincere appreciation a donation of security cameras, for the Parking Garage valued at \$29,925.00 from Red River.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0.

Policy Committee Recommendation Re Police Commission Ordinance Update

Memo from the Policy Committee:

Members of the City Council:

Over the course of several months, the Policy Committee reviewed state laws and the municipal ordinance pertaining to the Claremont Police Commission. It reviewed documents generated by Attorney Taylor regarding the history of state law, and researched the structure of Police Commissions in other communities. Finally, throughout the process the committee conferred with Chief of Police, Mark Chase, who is in agreement with the following recommendations.

It is important to note, per legal counsel, that the “City’s Police Commission is governed by special acts of the legislature rather than RSA chapter 105-C. Section 69 of the City’s Charter provides that the special legislation that established and governs the Police Commission remains in force, which means that it is not replaced by the Charter. The

Police Commission was originally established under 1947 ch. 342, the provisions of which have been amended three times since then. The most current version is 1973 ch. 382.”

The findings of the Policy Committee are as follows:

1. The municipal ordinance pertaining to the Police Commission is in Part II, Chapter 2, Article III, Division 9, titled Department of the Police. It was last updated in 1989. It is located in the Article, titled Administrative Code, which identifies the specific city departments, and not in Article II, titled Boards, Committees and Commissions.

Recommendation: Move Section 2-282, titled Powers of the Police Commission, to Article II, and create a new division titled Police Commission.

2. The current ordinance pertaining to the Police Commission is incomplete, and identifies only the powers of the commission. It should follow the same organizational format used in describing other Boards, Committees and Commissions.

Recommendation: Structure the ordinance for the Police Commission to include establishment, composition, duties, powers, rules and procedures. Language should be lifted from applicable state law for each of these sections to ensure that the city is in compliance. Furthermore, including an establishment section would give the city the opportunity to capture the history and origin of the Claremont Police Commission which was enacted in 1947, predating the adoption of the city charter.

3. The question of whether the city manager should participate as an ex-officio member of the Police Commission was considered. According to legal counsel, it is probable that it is legally permitted. However, legal counsel stressed that, if this practice continues, the ordinance must clearly outline the city manager’s role.

Recommendation: IAW state law, include in the ordinance language that clearly defines the city manager’s role as advisory, non-voting, and takes no authority away from the commissioners and is complementary to the three statutory commissioner positions.

4. The question of who should appoint the Police Commissioners was also considered. Under 1973, Chapter 382 law, the city manager has full power to appoint and remove commissioners.

Recommendation: In the ordinance, clearly define those powers and the law that establishes those powers.

In view of the above, the Policy Committee requests that the City Council vote to update the municipal ordinance on the Police Commission, authorizing legal counsel to prepare an updated draft for first reading. This will ensure that the ordinance is properly placed in the municipal code, follows the organizational structure established for commissions,

ensures completeness, and fulfills the Council's responsibility of updating policies every 5 years.

Signed,
The Policy Committee

Mayor Lovett said the Policy Committee is charged to review current ordinances that are in the City's Code every 5 years to be in compliance with the City's Charter. The Police Commission is in the ordinance for the Police Department and doesn't have its own section like the Conservation Commission, so that is one of the recommendations. The other recommendation is to make an ordinance structure for the Police Commission to read like other sections of the Municipal Code that pertain to commissions.

Mayor Lovett read the Policy Committee's recommendations (above).

A motion was made by Mr. Damren and seconded by Ms. Kenniston that in view of the above, the Policy Committee requests that the City Council vote to update the municipal ordinance on the Police Commission, authorizing legal counsel to prepare an updated draft for first reading. This will ensure that the ordinance is properly placed in the municipal code, follows the organizational structure established for commissions, ensures completeness, and fulfills the Council's responsibility of updating policies every 5 years.

There was discussion about making an LSR (Legislative Service Request) to change who appoints the Police Commissioners and whether or not to go along with this ordinance update when there is the potential of the legislative change in the near future. Mr. O'Hearne and Mr. Stone were in favor of waiting.

Chief Chase said the Police Commission is responsible to hire and fire police officers and set policy for the Police Department. Very few communities in NH have police commissions. He is in support of retaining Claremont's Police Commission. He is support of these changes proposed by the Policy Committee.

Ms. Kenniston doesn't think the City Manager should appoint Police Commissioners.

Voice vote: motion carried 6-2 with Messrs. O'Hearne and Stone voting no.

Charter Amendment Timeline Discussion

Mayor Lovett said that elections are in March and November and to make the timeline easier to read, she suggested legal counsel review the timeline and have some hard dates attached to these steps.

Councilors agreed this should go to the City Clerk to get the dates before it goes to legal.

Mr. Koloski asked to discuss the LSR. Due to the late hour, Mayor Lovett wanted to put it on a future agenda.

A motion was made by Mr. Stone and seconded by Mr. Koloski to discuss the LSR now in reference to the Police Commission.

Voice vote: motion failed 4-4 with Ms. Lessard, Mr. Damren, Mayor Lovett and Mr. Pope voting no.

Authorize Multi-Year Lease Agreement for City Vehicles and Equipment

Ms. Walter said the proposal came back at 2.99%. The company will only guarantee the rate for 30 days. This rate will save \$73,000 over the life of the agreement.

A motion was made by Mr. Stone and seconded by Mr. Damren to authorize the City Manager to enter into multi-year lease agreement, an Escrow Agreement and related Exhibits and attachments with Municipal Asset Management, Inc. for vehicles and equipment for the Public Works, Parks and Fire Departments, in an amount not to exceed \$1,050,800.00, the expenditure for the first year of the lease being \$125,866.91 said costs having been raised and appropriated in the 2020 budget. The proposed lease agreement contains a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of the lease.

Mr. Koloski asked where the old equipment will go. Ms. Walter said everything is on trade unless it comes to the Council for approved disposal.

Because of the short notice, Mr. O'Hearne is not in favor of this.

Mr. MacLean said this will save the City \$73,000. It is up to the Council to decide whether or not to accept it. This could not have come forward any earlier.

Voice vote: 8-0

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Ms. Kenniston would like to add a discussion of HB480, relative to sports betting, to the September 11 Council agenda. Mayor Lovett agreed to add it to the September 11 agenda.

Ms. Kenniston would like a cost analysis done of staff time (regular time and overtime) to cover board meetings and the minutes of those meetings. She wondered if it would be cheaper to have a part-time recording secretary to do the meetings/minutes. She feels it would be more efficient

to have a recording secretary and it would be done quicker. Mayor Lovett pointed out that would help committee members who try to take minutes at their meetings.

Ms. Kenniston would like to have a recording device at every public meeting, so the audio of the meeting could be uploaded to the City's webpage the next day. This will go on the October agenda.

Mr. Koloski requested someone from the NH Lottery Commission give a presentation on HB480, sports betting.

Mayor Lovett said the October agenda items will include recording minutes, cost analysis of how we do things now, and digital recorders.

Mr. Koloski would like to discuss establishing a task force to come up with housing/development incentives, to look into outlying parcels that are not able to get City water/sewer. He doesn't think it should solely be a Planning Board task. Mr. MacLean suggested he could work with Mr. Koloski and Nancy Merrill, Planning and Development Director, and then get that information to the Council. Council agreed. Mayor Lovett suggested the Administration give an overview to the Council of how federal funds have been utilized in the past and what the plan is for utilizing more. The trend is to give more money to rural development, and Claremont is considered rural development. That can go on the agenda in late September/October.

Mayor Lovett said the LSR will go on the agenda in September.

Mayor Lovett talked about having a discussion at the September 11th Council meeting to discuss the Mayors' Challenge to end veteran homelessness.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(b) – HIRING

At 10:14 p.m., a motion was made by Mr. Damren and seconded by Mr. Stone to enter the Non-Public Session pursuant to RSA 91-A:3,II(b) – Hiring, and to invite Ms. Russell into the session.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Koloski - yes

**Pope - yes
Lovett - yes
Motion carried 8-0.**

A motion was made by Mr. Pope and seconded by Mr. O'Hearne to exit the Non-Public Session.

**Roll call vote:
Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kenniston - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 8-0.**

At 10:31 p.m. Council returned to the Public Session.

A motion was made by Mr. Pope and seconded by Mr. Damren to seal the minutes because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board.

**Roll call vote:
Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kenniston - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 8-0.**

ADJOURNMENT

At 10:33 p.m., a motion was made by Mr. O'Hearne and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council